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[TENTATIVE] ORDER SUSTAINING IN

PART DEMURRER TO SECOND AMENDED COMPLAINT AND GRANTING MOTION TO STRIKE

PUNITIVE DAMAGES

1. Background

Facts

On February 23, 2026, Plaintiff

Monika Bhasin ("Plaintiff") filed the operative second amended complaint

("SAC") asserting twelve causes of actions related to (1) negligence; (2)

statutory violations; and (3) intentional infliction of emotional distress

against Defendants LA Park LA Brea, LLC; LA Park LA Brea A, LLC; and DOES 1

through 10 (collectively, "Defendants").

On April 29, 2026, Defendant LA Park LA Brea A, LLC filed the instant

demurrer with motion to strike the SAC. On June 25, 2026, Plaintiff filed an

opposition. On July 1, 2026, Defendant LA Park LA Brea A, LLC filed a reply.

2. Demurrer

and Motion to Strike

a. Meet

and Confer

Prior to filing

a demurrer and motion to strike, the demurring/moving party is

required to meet and confer in person, by telephone, or by videoconference with

the party who filed the pleading for the purposes of determining whether an

agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer and motion to strike. (Code Civ. Proc., § 430.41; Code Civ. Proc., § 435.5.)

Defendant LA Park LA Brea A, LLC's counsel of record, Jennifer C. Koo, attests to sending a meet and confer letter to Plaintiff's counsel and requesting a telephonic meet and confer. (Koo Decl., ¶¶5-8, Exs. A-B.) To date, Plaintiff's counsel has not responded. (Id., ¶9.) Although the parties did not meet and confer prior to the filing of the instant demurrer and motion to strike, Ms. Koo provided evidence showing efforts to comply with the meet and confer requirement. (Id., ¶¶5-6, Exs. A-B.)

b.

Discussion re Demurrer

Defendant LA Park LA Brea A, LLC (hereinafter, "Defendant") demurs to the second, third, fourth, fifth, sixth, eighth, ninth, tenth, eleventh, and twelfth causes of action on the grounds that it fails to state sufficient facts to constitute a cause of action and uncertain. However, the court notes that Defendant's meet and confer letter only raised issue with third, fourth, fifth, sixth, ninth, eleventh, and twelfth causes of action. (Koo Decl., ¶5, Ex. A.) Nonetheless, Plaintiff's opposition addresses all of the causes of action challenged by the demurrer. Thus, the court addresses all the causes of action demurred to.

"The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)

"A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether "the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (Id.) The Court does not "read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint 'as a whole and its parts in their context.' [Citation.]" (West v. JPMorgan Chase Bank, N.A. (2013)

214 Cal.App.4th 780, 804.) The Court “assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (Harris, supra, 56 Cal.4th p. 240.) “The court does not, however, assume the truth of contentions, deductions, or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)

A demurrer for uncertainty means the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

i.
Negligence Claims (2nd-3rd
C/As)

“To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately

caused the plaintiff's damages or injuries." (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.) "[W]hether an individual owes a duty of care to another is a question of law." (Portillo v. Aiassa (1994) 27 Cal.App.4th 1128, 1133.) "[W]hile negligence may be pleaded in general terms, the plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant's negligence has caused him injury." (Guilliams v. Hollywood Hospital (1941) 18 Cal.2d 97, 101.)

With respect to a legal duty to use due care, "landowners are liable for injuries caused by a lack of due care in the maintenance of their property." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.) "While a landowner is not the insurer of a visitor's safety, a landowner must exercise ordinary care by making reasonable inspections of the premises to ascertain whether any dangerous conditions exist on the property." (Id. at 1208.) "If a dangerous condition does exist, the landowner must, use the care required of a reasonably prudent [person] acting under the same circumstances." (Id.) The landowners failure to use the care of a reasonably prudent person when a dangerous condition exist constitutes a breach of duty of care. (Id.)

The SAC alleges, inter alia, that on or about April 12, 2022, Plaintiff fell while in a common area of the real property located at 6260 West Third Street, Number 438, Los Angeles, CA 90036 (the "Subject Property") that was negligently operated, maintained, and controlled by Defendants. (SAC, ¶¶1-2, 4, 55, 59.) Specifically, due to the bad maintenance and upkeep of the Subject Property, there was a nonoperational elevator that was used primarily by Plaintiff to access her unit. (Id.) As a result, Plaintiff was required to use another method of access and did not notice water and moisture on a walking surface as it could not be seen with the naked eye, and slipped and fell, severely injuring herself. (Id., ¶¶55-56, 61.) Defendants had preexisting knowledge of the dangerous condition and that there had been other similar falls causing similar injury to other individuals. (Id., ¶¶57, 62.) The woeful maintenance violated the implied covenant of habitability. (Id., ¶60.)

Taking the allegations as true, Plaintiff sufficiently alleges that Defendant had a duty to maintain the Subject Property in accordance with the implied covenant of habitability. The

SAC further alleges that Defendant knowingly breached that duty by failing to upkeep and maintain an operational elevator with access to and from Plaintiff's unit. The SAC also alleges that Defendant knowingly breached that duty by allowing a dangerous condition to exist on the Subject Property which caused similar falls and injuries to others. The SAC also alleges that Plaintiff suffered severe injuries as a result of Defendant's negligent conduct.

Accordingly,
the demurrer to the second through third causes of action are OVERRULED.

ii.

Repair and Maintenance Obligation Claims (4th-6th
C/As)

"The lessor of a building intended
for the occupation of human beings must, in the absence of an agreement to the
contrary, put it into a condition fit for such occupation, and repair all
subsequent dilapidations thereof, which render it untenable, except such as
are mentioned in section nineteen hundred and twenty-nine." (Civ. Code, § 1941.)
"A dwelling shall be deemed untenable for purposes of Section 1941 if it
substantially lacks any of the following affirmative standard characteristics
or is a residential unit described in Section 17920.3 or 17920.10 of the Health
and Safety Code." (Civ. Code, § 1941.1, subd. (a).)

"Every existing building,
structure, premises or portion thereof shall be maintained in conformity with
the code regulations and Department approvals in effect at the time of such
construction and occupancy unless specifically exempt by written approval of
the Department." (LAMC, § 91.8104.) "Every existing building, structure, or
portion thereof shall be maintained in a safe and sanitary condition and good
repair. The premises of every building or structure shall be maintained in good
repair and free from graffiti, debris, rubbish, garbage, trash, overgrown
vegetation or other similar material." (Id.)

The SAC alleges,
inter alia, that Defendants violated and/or did not comply with Civil
Code Section 1941 et seq., Health & Safety Code Section 17910 et seq., and
Los Angeles Municipal Code ("LAMC") Section 91.8104, by failing to maintain the
building grounds and appurtenances and all other areas under the control of the
landlord in a clean and sanitary condition; and failing to maintain floors,

stairways and other components of the complex in good repair. (SAC, ¶¶64-68, 72-78, 81-83.) Defendants' violations were the proximate cause or substantial contributing factor to Plaintiff's injuries, harms, and losses. (Id., ¶¶69, 79, 84.)

Taking

these allegations as true, Plaintiff fails to plead sufficient facts to constitute violations of these statutes. The SAC is devoid of any allegations that waterproofing and weather protection of the roof and exterior walls were defective; plumbing or gas facilities, water supply, heating facilities, and electrical lighting were not maintained in good working order in conformity with applicable laws; there was debris, filth, rubbish, garbage, rodents, and vermin on the building, grounds, and appurtenances. To the extent that the SAC contains allegations that the floors, stairways, and railings were not in good repair, it is a conclusory allegation where statutory violations must be plead with particularity. (See *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 ["[S]tatutory causes of action must be pleaded with particularity... ."].)

Accordingly,

the demurrer to the fourth through sixth causes of action are SUSTAINED with leave to amend.

iii.

Civil Rights Claims (8th-10th
C/As)

"All persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever." (Civ. Code, § 51, subd. (b).) Likewise, "[i]t shall be unlawful: (a) For the owner of any housing accommodation to discriminate against or harass any person because of the race, color, religion, sex, gender, gender identity, gender expression, sexual orientation, marital status, national origin, ancestry, familial status, source of income, disability, veteran or military status, or genetic information of that person." (Gov. Code, § 12955, subd. (a).)

The SAC alleges, inter alia, that on multiple occasions, Defendant deprived Plaintiff of full and equal accommodations, advantages, facilities, privileges and services relative to the La Brea Apartment Complex. (SAC, ¶¶95-98, 101-102, 105.) On multiple occasions, Defendant discriminated against and harassed Plaintiff because of her race, color, sex, national origin, ancestry and /or disability. (Id., ¶¶106-107.) As a proximate result of these statutory violations, Plaintiff suffered injury, harm, or loss. (Id., ¶¶99, 103, 108.)

Taking these allegations as true, Plaintiff fails to allege sufficient facts to constitute causes of action for violations of these statutes against Defendant. These causes of action are not pled with particularity. There are no allegations of who discriminated against and/or harassed Plaintiff; what housing accommodations Plaintiff sought, which was denied; how Plaintiff was discriminated and/or harassed; when these alleged discriminatory and/or harassing actions occurred and where they occurred.

Accordingly, the demurrer to the eighth through tenth causes of action are SUSTAINED with leave to amend.

iv.

Eleventh Cause of Action for Violation of Penal Code §§ 484, 496

“Every person who shall feloniously steal, take, carry, lead, or drive away the personal property of another, or who shall fraudulently appropriate property which has been entrusted to him or her, or who shall knowingly and designedly, by any false or fraudulent representation or pretense, defraud any other person of money, labor or real or personal property, or who causes or procures others to report falsely of his or her wealth or mercantile character and by thus imposing upon any person, obtains credit and thereby fraudulently gets or obtains possession of money, or property or obtains the labor or service of another, is guilty of theft.” (Pen. Code, § 484, subd. (a).) “To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond ‘mere proof of nonperformance or actual falsity.’ ” (Siry Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 361–362.) “If

misrepresentations or unfulfilled promises 'are made innocently or inadvertently, they can no more form the basis for a prosecution for obtaining property by false pretenses than can an innocent breach of contract.' " (Id.)

By contrast, "Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170." (Pen. Code, § 496, subd. (a).) "A principal in the actual theft of the property may be convicted pursuant to this section. However, no person may be convicted both pursuant to this section and of the theft of the same property." (Id.)

The SAC alleges, inter alia, that Defendants procured money from Plaintiff under false pretenses in violation of Penal Code Sections 484 and 496. (SAC, ¶¶110-111.) As a result, Defendants received substantial money, or other amount according to proof. (Id., ¶112.) However, the SAC is unclear regarding what statements were made, who made them, how they were made, and when they were made to Plaintiff. Furthermore, it is unclear what the alleged money was procured for, i.e., rent and/or utilities. "[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) Moreover, the SAC fails to sufficiently allege Defendant acted with the requisite criminal intent.

Accordingly, the demurrer to the eleventh cause of action for violation of Penal Code Sections 484 and 496 is SUSTAINED with leave to amend.

v.

Twelfth Cause of Action for Intentional Infliction of Emotional Distress ("IIED")

"A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing,

emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.)

" 'Conduct, to be " 'outrageous' " must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.' [Citation.]" (Ibid.) Similarly, "[s]evere emotional distress means "emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it."" (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.)² "[M]ere insults, indignities, threats, annoyances, petty oppressions, or other trivialities' " do not constitute extreme and outrageous conduct." (Okorie v. Los Angeles Unified School Dist. (2017) 14 Cal.App.5th 574, 597 [222 Cal.Rptr.3d 475, 494] disapproved of by Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995 on other grounds.)

The SAC alleges, inter alia, that Defendants intentionally inflicted emotional distress on Plaintiff and/or engaged in conduct with reckless indifference to the obvious consequences of their conduct. (SAC, ¶¶117-118.) However, the SAC is devoid of any facts showing that Defendant engaged in extreme and outrageous conduct such as engaging in harassing and/or discriminatory actions.

Accordingly, the demurrer to the twelfth cause of action for IIED is SUSTAINED with leave to amend.

c.

Discussion re Motion to Strike

Defendant moves to strike the request for and references to punitive damages at Paragraphs 53, 57, 62, 71, 80, 86, 94, 100, 104, 109, 116, 120, and prayer for relief item no. 5.

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd.

(b)(1).)¿¿¿¿

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”.].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)¿¿¿

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The California Civil Code Section 3294, subdivision (a) authorizes punitive damages upon a showing of malice, fraud, or oppression.

Malice is defined as either

“conduct which is intended by the defendant to cause injury to the plaintiff”, or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal. App. 4th 306, 331.) Fraud under California Civil Code Section 3294, subdivision (c)(3) “means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing

injury.” (Civ. Code, § 3294, subd. (c)(3).) The California Civil Code Section 3294, subdivision (2) defines oppression as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (2).)

Punitive damages thus require more than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) A “conclusory characterization of [a] defendant’s conduct as intentional, wilful and fraudulent [is] [a] patently insufficient statement of oppression, fraud, or malice”. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 865.) Facts must be pled to show that a defendant “act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff’s rights.” (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice.” (G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

As discussed in the demurrer section, Plaintiff fails to allege sufficient facts to support violation of any of the causes of action based on violation of various statutes, which could have formed a basis for punitive damages. Furthermore, the SAC devoid of any allegations that Defendant engaged in extreme and outrageous conduct that could also support a claim for punitive damages.

3. Conclusion

Based on the foregoing, Defendant LA Park LA Brea A, LLC’s Demurrer to the Second Amended Complaint is SUSTAINED IN PART with 30 days leave to amend as to the fourth, fifth, sixth, eighth, ninth, tenth, eleventh, and twelfth causes of action, and OVERRULED IN PART as to the second and third causes of action.

Defendant LA Park LA Brea A, LLC’s Motion to Strike the Punitive Damages is GRANTED with 30 days leave to amend.

Defendant LA Park LA Brea A, LLC is ordered to give notice.